

TENTATIVE RULINGS

FOR: June 30, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. B Zoom

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**** All matters originally set in Dept. A will be heard in Dept. B ****

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Estate of Nancy Eileen Gallagher

18PR000184

FIRST AND FINAL REPORT OF ADMINISTRATOR ON WAIVER OF ACCOUNT AND PETITION FOR ITS SETTLEMENT, FOR ALLOWANCE OF STATUTORY COMPENSATION TO ADMINISTRATOR AND ATTORNEYS, AND REIMBURSABLE EXPENSES TO HEIRS, ADMINISTRATOR, AND ATTORNEYS, FOR WITHHOLDING OF A RESERVE, AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

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In the Matter of Patrick J. Van Fleet and Bernardine E. Van Fleet **22PR000036**
2011 Trust dated September 27, 2011

PETITION CONCERNING INTERNAL AFFAIRS OF TRUST AND FOR ORDER
APPROVING FIRST ACCOUNT AND REPORT OF TRUSTEE OF RUTH'S TRUST, AND
FOR APPROVAL OF TRUSTEE COMPENSATION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

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Estate of David Lloyd Ward **24PR000118**

FIRST AND FINAL REPORT OF ADMINISTRATOR AND PETITION FOR ITS
SETTLEMENT ON WAIVER OF ACCOUNT AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: The matter is CONTINUED to August 4, 2026, at 8:30 a.m. in
Dept. B.

Petitioner requests a waiver of the accounting required pursuant to Probate Code,
§ 10951. Petitioner alleges that all persons entitled to distribution have waived the requirement.
(See Petition at ¶ 16.) The Court is unable to locate any such waiver(s) in its files. (See Prob.
Code § 10954.) Finally, Petitioner fails to cite to authority suggesting that a lack of estate assets
excuses the requirement. The matter is therefore continued to permit Petitioner time to file
waivers of accounting or to file an accounting.

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Estate of John Daniel McDonald **24PR000206**

FIRST AND FINAL REPORT OF ADMINISTRATOR AND PETITION FOR ITS
SETTLEMENT, FOR ALLOWANCE OF STATUTORY COMPENSATION TO
ADMINISTRATOR AND ATTORNEYS AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed. The
August 20, 2026, Status Hearing Re: Final Distribution is therefore VACATED.

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Estate of Robert D Garcia **25PR000004**

FIRST AND FINAL REPORT OF ADMINISTRATOR ON WAIVER OF ACCOUNT,
PETITION FOR FINAL DISTRIBUTION AND ALLOWANCE OF COMPENSATION TO
ADMINISTRATOR AND ATTORNEYS FOR STATUTORY SERVICES

TENTATIVE RULING: The petition is GRANTED, including fees as prayed. The
February 10, 2027, Status Hearing Re: Final Distribution is therefore VACATED.

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SECOND AMENDED PETITION FOR ORDER CONFIRMING TRUST OWNERSHIP OF ASSETS

TENTATIVE RULING: The petition is GRANTED.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Julianne Wurm v. James Pitkow et al

24CV000921

PLAINTIFF JULIANNE WURM’S MOTION FOR RELIEF UNDER CODE OF CIVIL PROCEDURE SECTION 473(b) FROM THE COURT’S MAY 21, 2026 ORDER ADOPTING THE TENTATIVE RULING ON PLAINTIFF’S MOTION TO TAX COSTS

TENTATIVE RULING: This matter is CONTINUED to July 31, 2026, at 8:30 a.m. in Dept. B to allow the moving party to provide sufficient notice of the motion.

There is no Proof of Service of Plaintiff’s motion on file, as required by Rules of Court, rule 3.1300, subdivision (c). In Opposition, Defendants claim the motion was served via electronic means on June 5, and only after Defendants’ counsel contacted Plaintiff’s counsel to serve the papers. Plaintiff implicitly concedes the foregoing by failing to file a Reply to the Opposition.

June 3 was the last day for service, by electronic means, of a notice and papers filed in support of a motion set for hearing on June 30. (See Code Civ. Proc., §§ 12c, subds. (a) and (b), 1005, subd. (b), and 1010.6, subd. (a)(3)(B).) Thus, the moving party failed to serve the notice and moving papers 18 court days before the hearing as required. Defendants do not waive the notice defect. As such, the Court is without jurisdiction to hear it. (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

The moving party is directed to (1) prepare an Amended Notice which contains the continued hearing date, as well as notice of the Court’s tentative ruling system as required by Local Rule 2.9, (2) provide timely service of the Amended Notice and moving papers to all other parties, and (3) file a proof of service pursuant to Rules of Court, rule 3.1300, subd. (c).

Defendants are granted leave to file and serve an Amended Opposition no later than July 20. Any Amended Opposition should be a complete and self-contained opposition and not simply an addendum to the opposition memorandum filed June 8 and shall comply with all procedural requirements for oppositions to motions.¹ Plaintiff is then granted leave to serve and file, no later than July 24, a Reply that complies with all procedural requirements for replies in support of motions.

¹ To be clear, if an Amended Opposition is filed, the Court will disregard the original June 8 Opposition.

[1] DEMURRER TO SECOND AMENDED COMPLAINT BY DEFENDANT
CARRINGTON MORTGAGE SERVICES, LLC

TENTATIVE RULING: The demurrer is SUSTAINED. Plaintiff is granted 10 calendar days' leave, from entry of the instant order, to amend the SAC. However, this leave is limited to stating a good claim for Breach of the Covenant of Good Faith and Fair Dealing unless Plaintiff requests oral argument, pursuant to Local Rule 2.9, and persuades the Court that there is a reasonable possibility that he can amend to state a good claim for Promissory Fraud and/or Intentional Misrepresentation.

A. PRELIMINARY MATTERS

Defendant Carrington Mortgage Services, LLC (Carrington) demurs, pursuant to Code of Civil Procedure 430.10, subdivision (e), to the Breach of Covenant of Good Faith and Fair Dealing (Second COA), Promissory Fraud, and Intentional Misrepresentation Causes of Action asserted by Plaintiff through the Second Amended Complaint (SAC).

Mr. Giglio filed the SAC following the Court's April 21, 2026, Minute Order (4/21/26 M.O.) sustaining, in part, Carrington's demurrer to the First Amended Complaint (FAC).

The instant action arises out of allegations of a declaration, by Carrington, of default, by Mr. Giglio, on a mortgage loan secured by his residence, and ensuing steps, by Carrington, towards foreclosure and trustee's sale. Pursuant to the allegations in the FAC, such foreclosure and trustee's sale were avoided, and the loan has been modified. (See *id.* at ¶¶ 36-37.) Mr. Giglio alleges that, nonetheless, "[a]s a . . . result of Carrington's conduct, including its false claims about its willingness to review Plaintiff's May 2025 loan modification application and provide him with one if the application showed he qualified, failure to provide Plaintiff for [sic] a loan modification until after filing his lawsuit and obtaining injunctive relief, failure to timely provide Plaintiff with a reinstatement quote until it was too late for him to reinstate, and threatening foreclosure and the loss of his primary residence when it was not allowed by law, Plaintiff suffered damages." (*Id.* at ¶ 38.)

B. LEGAL BACKGROUND

A complaint must contain "facts constituting the cause of action." (Code Civ. Proc., § 425.10, subd. (a)(1).) "The party against whom a complaint or cross-complaint has been filed may object, by demurrer . . . to the pleading on . . . grounds [that] . . . [t]he pleading does not state facts sufficient to constitute a cause of action" (Code Civ. Proc., § 430.10.) A demurrer on grounds that a plaintiff has failed to state a claim is treated as "admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Such a demurrer "'does not admit . . . facts impossible in

law, or allegations contrary to facts of which a court may take judicial knowledge.’ [Citation.]” (*Kenneth Mebane Ranches v. Superior Court* (1992) 10 Cal.App.4th 276, 291-292.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because, “[a] demurrer tests only the legal sufficiency of the pleading...the question of plaintiff’s ability to prove the[] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

C. LEGAL ANALYSIS

1. Breach of the Covenant of Good Faith and Fair Dealing

“‘Every contract imposes upon each party a duty of good faith and fair dealing in its performance and its enforcement.’ [Citation.]” (*Carma Devs. (Cal.), Inc. v. Marathon Dev. California, Inc.* (1992) 2 Cal.4th 342, 371.) “It is universally recognized the scope of conduct prohibited by the covenant of good faith is circumscribed by the purposes and express terms of the contract.” (*Id.* at 373.)

Carrington asserts that the SAC fails to allege facts sufficient to state a claim for Breach of the Implied Covenant of Good Faith and Fair Dealing “because Plaintiff still does not plead the specific contract terms allegedly breached, Defendant’s status as a contracting party to Plaintiff’s Note or Deed of Trust, Plaintiff’s own performance, any express contractual benefit frustrated by Defendant, or damages caused by any contractual interference rather than by Plaintiff’s admitted loan default.” (Notice of Demurrer at 3:4-8.)

Carrington’s first assertion – that the SAC fails to allege “specific contract terms allegedly breached” – is irrelevant to the instant claim. “[B]reach of a specific provision of the contract is not a necessary prerequisite” to a claim for Breach of the Covenant of Good Faith and Fair Dealing. (*Carma Developers (Cal.), Inc. v. Marathon Development California, Inc.* (1992) 2 Cal.4th 342, 373 (*Carma*).)

However, the Court finds merit in Carrington’s remaining arguments.

In sustaining Carrington’s demurrer to the FAC, the Court noted that it was “unable to find, in the FAC, allegations of a contract by and between Mr. Giglio and Carrington.” (4/21/26 M.O.) Mr. Giglio attempts to cure this defect by alleging that “In about March of 2007, Plaintiff executed a Note and a Deed of Trust to obtain a home loan (the ‘Loan’). The Deed of Trust for the Loan was recorded on title the Property [*sic*] on April 5, 2007. In 2021, Truman Capital Advisors, LP (‘Truman’) purchased a pool of mortgage loans from the Federal Housing Finance Agency (‘FHFA’) that included the Loan. By purchasing the Loan, Truman gained all of the contractual rights to the Loan. . . . In 2024, Carrington acquired some of the rights to the Loan from Truman when it became the Loan’s servicer, including but not limited to the rights to

collect payments and to enforce the power of sale clause.” (SAC at ¶¶ 11-14, 16.) In this context, Plaintiff alleges that “Carrington breached the implied covenant of good faith and fair dealing frustrating and preventing Plaintiff’s performance under the Note and Deed of Trust for the Loan. Carrington engaged in conscious and deliberate acts that frustrated Plaintiff’s right to benefit from the Note and Deed of Trust for the Loan.”

The Court agrees that the SAC fails to allege the contract giving rise to the Second COA. The definition for the term “Loan,” set forth in paragraph 11 of the SAC, cannot reasonably be construed as describing a contract. As such, the allegation that Carrington “acquired some of the rights to the Loan” is insufficient to allege a contractual relationship between Mr. Giglio and Carrington. Even if the term “Loan” could be read to refer to a contract, the abstract allegation that Carrington acquired some unspecified *rights* thereto is insufficient to create an *obligation*, on Carrington’s part, “to discharge contractual responsibilities.” (*Careau, supra*, 222 Cal.App.3d at 1395.)

Moreover, again assuming *arguendo* that the term “Loan” can be read as a contract, the Court finds the allegations of the SAC wholly insufficient to identify how any conduct by Carrington “unfairly frustrates the agreed common purposes and disappoints the reasonable expectations of [Mr. Giglio] thereby depriving [him] of the benefits of [an] agreement.” (*Careau, supra*, 222 Cal.App.3d 1395.) This is due to the fact that the SAC fails to identify any “common purpose” of such contract, and further fails to identify any of Mr. Giglio’s expectations relating thereto.

Based on the foregoing, the demurrer is SUSTAINED as to the Second COA.

It is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (*Goodman*).) The Court continues to find, from the allegations of the SAC a *possibility* that Mr. Giglio can amend to state a good claim for Breach of the Covenant of Good Faith and Fair Dealing.

In order to do so, however, Mr. Giglio must plead, not only the existence of a specific contract between himself and Carrington, but also “essential facts . . . sufficient to acquaint . . . defendant with the nature, source and extent of his cause of action.” ((*Doheny Park Terrace Homeowners Association, Inc. v. Truck Insurance Exchange* (2005) 132 Cal.App.4th 1076, 1098-1099 (*Doheny Park*)).) To this end, the Court stresses that “[i]t is universally recognized the scope of conduct prohibited by the covenant of good faith is circumscribed by the *purposes* and *express terms* of the contract. (*Carma, supra*, 2 Cal.4th at 373. *Italics added.*) Thus, allegations of these purposes and express terms are required.

Moreover, “[A]llegations which assert such a claim must show that the conduct of the defendant, whether or not it also constitutes a breach of a consensual contract term, demonstrates a failure or refusal to discharge contractual responsibilities, prompted not by an honest mistake, bad judgment or negligence but rather by a conscious and deliberate act, which unfairly frustrates the agreed common purposes and disappoints the reasonable expectations of the other party thereby depriving that party of the benefits of the agreement. Just what conduct will meet

these criteria must be determined on a case by case basis and will depend on the contractual purposes and reasonably justified expectations of the parties. (*Careau, supra*, 222 Cal.App.3d at 1395.)

If Mr. Giglio unsuccessfully attempts to amend the SAC to allege a good claim for Breach of Covenant of Good Faith and Fair Dealing, the Court will be disinclined to grant him additional leave unless, through any opposition to any subsequent demurrer, he is able to clearly articulate how he can further amend the operative pleading to state such claim.

2. Promissory Fraud and Intentional Misrepresentation Claims

As the Court noted in its 4/21/26 M.O., “In California, fraud must be pled specifically; general and conclusory allegations do not suffice. Thus, the policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered. A plaintiff’s burden in asserting a fraud claim against a corporate employer is even greater.” (*Lazar v. Super. Ct.* (1996) 12 Cal.4th 631, 645 (*Lazar*). Internal quotes and citations omitted.) “The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege *the names of the persons who made the allegedly fraudulent representations*, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157 (*Tarmann*), italics added; see also *Lazar v. Super. Ct.* (1996) 12 Cal.4th 631, 645 (*Lazar*).) While “the requirement of specificity is relaxed when the allegations indicate that ‘the defendant must necessarily possess full information concerning the facts of the controversy,’ a demurrer for failure to allege these details is properly sustained where the allegations indicate that “[defendant] has no more reason to know who made the allegedly false representations to [plaintiff] than [plaintiff].” (*Tarmann, supra*, at p. 158.)

Mr. Giglio fails to allege fraudulent representations with the requisite specificity. Mr. Giglio fails to name the person who made the alleged representations. (See SAC at ¶¶ 21-24, 28, 29, 31, [“Carrington employee(s)”], and 63-65, 67-74, 77-78, and 80-85 [“authorized representative(s)”].) The Court further finds that Mr. Giglio’s allegations that the representations were made “in May of 2025” is insufficient as to when the representations were made. (*Id.* at ¶¶ 21-25, 28.) The Court does not find that the nature of the allegations indicates that Carrington “must necessarily possess full information concerning the facts of the controversy.” (*Tarmann, supra*, 2 Cal.App.4th at 157.)

Through his Opposition, Mr. Giglio contends that he has sufficiently alleged that such employees were authorized to make the alleged representations. (See *id.* at 6:7-16.) He does not, however, address the fact that the SAC does not name a single person who is alleged to have made any representations supporting the fraud claims, or provide the date on which any of the alleged representations were made.

Based on the foregoing, the demurrer is SUSTAINED as to the Promissory Fraud and Intentional Misrepresentation Claims.

Moreover, Mr. Giglio acknowledges, through his Opposition, that he “is not sure of the full names of the persons he spoke with over the telephone.”² (Opposition at 7:8-9.) It appears, to the Court, that the foregoing acknowledgement eliminates any reasonable possibility that Mr. Giglio can amend the SAC to allege facts with the specificity required to support a claim for fraud against Carrington. (See *Goodman, supra*, 18 Cal.3d 335, 349 [held: while it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action, the pleading party bears the burden of showing such reasonable possibility]; see also *Tarmann, supra*, 2 Cal.App.4th at 158 [held: where defendant “has no more reason to know who made the allegedly false representations to [plaintiff] than [plaintiff] . . . the court properly sustained the demurrer to the fraud claim without leave to amend”].)

Mr. Giglio fails, through the Opposition, to suggest any such amendment.

Based on the foregoing, the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to the Promissory Fraud and Intentional Misrepresentation Claims. If Mr. Giglio believes that he *can* amend to state good fraud claims, he may request oral argument, pursuant to Local Rule 2.9, and appear prepared to describe such proposed amendments for the Court.

[2] MOTION TO STRIKE PORTIONS OF PLAINTIFF’S SECOND AMENDED COMPLAINT

TENTATIVE RULING: The motion is GRANTED IN PART. The Court STRIKES Paragraph 4 of the Prayer for Relief section of the Second Amended Complaint (SAC). (See *id.* at 11:17.) The motion is DENIED in all other respects. Plaintiff John J. Giglio is granted 10 calendar days’ leave, from entry of the instant order, to amend the SAC to allege specific facts sufficient to support a finding that Defendant Carrington Mortgage Service, LLC’s acts, as alleged in the SAC, were undertaken with malice or oppression.

Defendant Carrington Mortgage Services, LLC (Carrington) moves, pursuant to Code of Civil Procedure sections 435 and 436, for an order striking portions of Plaintiff’s Second Amended Complaint (SAC). Specifically, Carrington asks the Court to strike: (1) the phrase “including mental anguish and emotional distress” from Paragraph 2 of the Prayer for Relief; (2) Paragraph 4 of the Prayer for Relief in its entirety; and (3) various allegations in Paragraphs 38 and 75 of the body of the SAC. (See Notice of Motion at 2:1-18.)

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” (Code of Civ. Proc., § 436, subd. (a).) “The appropriate procedural device for challenging a portion of a cause of action seeking an improper remedy is a motion to strike.” (*Caliber Bodyworks, Inc. v. Superior Court* (2005) 134 Cal.App.4th 365, 385.)

² To be clear, it appears that Plaintiff is unable to provide *any* names for *any* of the “Carrington employees” and “authorized representatives” alleged to have made the subject representations.

The Court finds no good cause for striking the subject allegations of paragraphs 38 or 75 of the SAC. The Court does not find that these allegations introduce ambiguities into the pleading or render it uncertain. The motion is, therefore, DENIED as to these allegations.

Moreover, emotional distress is one possible component of the “actual damages” available through a claim under the Rosenthal Fair Debt Collections Practices Act (Act). (See Civil Code § 1788.30; see also *Komarova v. National Credit Acceptance, Inc.* (2009) 175 Cal.App.4th 324, 341, fn. 3 [“It is not disputed that . . . ‘actual damages’ recoverable under the Act (§ 1788.30) include those for the plaintiff’s emotional distress”].)

Mr. Giglio asserts a claim for violation of the Act through the SAC. (See *id.* at 6:1, *et seq.*)

For this reason, the Court does not find good cause for striking the phrase “including mental anguish and emotional distress” from Paragraph 2 of the Prayer for Relief.

Through the Reply, Carrington asserts that the instant motion “challenges Plaintiff’s global emotional-distress allegations in paragraph 38 and the prayer. Those allegations are incorporated into all causes of action and seek non-economic damages generally. To the extent the Court concludes emotional distress may be available as actual damages under the Rosenthal Act, the proper remedy is to limit any such damages to the First Cause of Action and strike or narrow the common and prayer language to prevent Plaintiff from seeking emotional-distress damages under the implied covenant and fraud-based claims.” (Reply at 4:17-22.) Carrington cites to no authority in support of the assertion that this is the “proper remedy.” The Court is unconvinced that striking the subject allegations and prayer are an appropriate means for ensuring that Mr. Giglio is awarded only those damages permitted for each asserted claim.

To support a prayer for punitive damages, a complaint must contain allegations that the defendant has been guilty of oppression, fraud, or malice. (Civil Code § 3294, subd. (a); *Turman v. Turning Point of Central Cal., Inc.* (2010) 191 Cal.App.4th 53, 63.)

As discussed in the concurrent ruling on Carrington’s Demurrer to the SAC, the Court finds that Mr. Giglio has failed to allege facts sufficient to state a claim for fraud.

“Malice” includes “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code § 3294, subd. (c)(1).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at subd. (c)(2).) Allegations of these elements must be pled with exactitude. (*G.D. Searle & Co. v. Super. Ct.* (1975) 49 Cal.App.3d 22, 27 (*G.D. Searle*).) “When nondeliberate injury is charged, allegations that the defendant’s conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice.” (*Id.* at 29.) Moreover, mere conclusory allegations parroting the language of the statute will not suffice to support a prayer for punitive damages. (*Smith v. Super. Court* (1992) 10 Cal.App.4th 1033, 1042.

The Court finds no factual allegations in the SAC that Carrington acted with oppression or malice. Mr. Giglio asserts that he “alleges that Carrington engaged in various acts because Carrington was motivated by a desire to engineer a foreclosure of his home in order to recoup the late, foreclosure, and other fees from the foreclosure sale. Foreclosing and then evicting a person from their home without justification is despicable conduct.” (Opposition at 3:20-23.) He fails, however, to cite to any such allegations. No such allegations are immediately apparent to the Court. Moreover, it is not the Court’s obligation to search for them. (See *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal. App. 4th 927, 934 [“Rules of Court rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide”].)

Based on the foregoing, the Court does not find that the factual allegations of the SAC are sufficient to support a prayer for punitive damages. The Court, therefore, finds good cause for striking that prayer from the SAC.

It is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (*Goodman*).) The Court finds, from the allegations of the SAC, a possibility that Mr. Giglio can amend to allege facts that would support a finding of malice or oppression. Therefore, the Court grants Mr. Giglio leave to amend the SAC for this limited purpose.

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Alexander Rowland et al v. Newco Capital Group LLC et al

25CV002471

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The Motion is DENIED WITHOUT PREJUDICE.

The Court has never obtained Jurisdiction to hear the instant Motion. (See *Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question”].)

The Court has given counsel *three* opportunities to properly serve Notice of the Motion and hearing. As noted in the Minute Order of May 5, 2026, the original service did not provide adequate notice of the original hearing. Despite the Court’s express order that Counsel provide adequate notice in advance of the June 2, 2026, hearing, there is *no proof* in the Court’s file that *any notice* of that hearing was provided.

Counsel’s latest effort at providing formal Notice of hearing fails as service was made by email with only 16 days’ notice (June 19, 2026, was a Court holiday), without providing two additional days as required by Code of Civil Procedure section 1010.6, subd. (a)(3)(B).)

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DEFENDANT’S MOTION TO PRECLUDE EVIDENCE OF ACCOUNT PURSUANT TO CCP § 454

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTER

Defendant James Potter (“Defendant”) moves, pursuant to Code of Civil Procedure section 454,³ for an order precluding Plaintiff Velocity Investments, LLC (“Plaintiff”) from giving evidence of the account alleged in the Complaint. The motion is made on the grounds that Plaintiff failed and refused to deliver a verified Bill of Particulars within ten (10) days after a written demand was served by Defendant.

B. LEGAL STANDARD

Section 454 is a discovery procedure outside of the Discovery Act dating back to early common law. (Weil & Brown, *et al.*, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2026), Ch. 8 Discovery, § 8:1765.) It enables defendants who have been sued generally on an account to force a plaintiff to itemize the account on which the complaint is based. (*Ibid.*) Although interrogatories and depositions can now be used for the same purpose, the bill of particulars remains an alternative and supplemental procedure. (*Ibid.*)

The express language provides: “It is not necessary for a party to set forth in a pleading the items of an account therein alleged, but he must deliver to the adverse party, within ten days after a demand thereof in writing, a copy of the account, or be precluded from giving evidence thereof.” (§ 454.) The court has power to make such an order at trial or any time beforehand. (*Burton v. Santa Barbara Nat’l Bank* (1966) 247 Cal.App.2d 427, 433; see also Cal. Judges Benchbook: Civ. Proceedings-Discovery, Ch. 23 Managing Discovery Under Other Statutes, § 23.23.)

C. DISCUSSION

Plaintiff’s Complaint asserts a single cause of action for breach of contract with a demand for \$40,905.55. (11/24/25 Compl.) The Complaint alleges that, on October 31, 2022, Cross River Bank issued a Consumer Loan to Defendant, account number -7034. (*Id.*, ¶ 13, Exh. A.)

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

Defendant agreed to repay amounts advanced, but breached the agreement by failing to make payments as agreed. (*Id.*, ¶ 14.) The date of last payment was July 31, 2023. (¶ 16.)

Here, Defendant presents evidence that he served Plaintiff's counsel of record with a formal Demand for Bill of Particulars ("Demand") on April 28, 2026. (Declaration of James Potter ("Potter Decl."), ¶ 2, Exh. A.) The Demand sought: (1) a line-item accounting to resolve a material \$28,000 discrepancy between the alleged principal disbursement and the actual deposits made to Defendant, and (2) verification of the chain of title from Cross River Bank to Plaintiff. (Mem., pp. 3-4.)

The deadline for Plaintiff to respond to the Demand expired on May 13, 2026. (§ 454.) Defendant sent a meet and confer email to Plaintiff's counsel on May 14, 2026. (Potter Decl., ¶ 5, Exh. C.) As of the date Defendant executed his declaration, Plaintiff had not responded to either the Demand or the meet and confer communication. (*Id.*, ¶ 6.)

Plaintiff implicitly concedes the foregoing by failing to file an opposition to the present Motion.

As a starting point, the Court must first determine whether the present action is subject to section 454—i.e., whether the complaint sues generally on "an account." "A demand for bill of particulars may be served on the plaintiff only in an action on 'an account.'" (Weil & Brown, *et al.*, *supra*, § 8:1768.) Defendant does not expressly address this point. Rather, Defendant's argument and requested relief through his Motion assume that section 454 applies to the subject Complaint.

The Court does not find that the present Complaint is made on "an account" such that section 454 is applicable.

"Section 454 has received a fairly broad interpretation and has been construed to cover almost any kind of contract action for a money claim made up of more than one item." (*Distefano v. Hall* (1963) 218 Cal.App.2d 657, 677.) "The most frequent case is where the complaint contains one or more of the common counts: Open book accounts; For labor and materials furnished under a contract; For monies loaned; For 'money had and received.'" (*Id.*, § 8:1769.) Section 454 is not available where the complaint is for account stated or for damages for a breach of contract. (*Distefano v. Hall* (1963) 218 Cal.App.2d 657, 677-78 [adopting reasoning that "an action for damages for a breach of contract is not an action to recover 'items of account' and that, accordingly, it was proper for the [plaintiff] to ignore a demand for a bill or particulars]; see also *Ahlbin*, *supra*, 100 Cal.App.2d at 648.) Where section 454 does not apply, a plaintiff may simply ignore a defendant's demand. (*Ibid.*)

Here, the Complaint does not assert a common count cause of action. It asserts a breach of contract for a single specified account, upon which Defendant defaulted, and it pleads the specific amount owed as a result. This does not appear to be the type of Complaint that the benefit of the bill of particulars under section 454 is intended to benefit. Even assuming *arguendo* that section 454 applies to the instant action, where a plaintiff fails to deliver a bill of particulars in response to a demand, the consequence is that the Court *may* bar the plaintiff from

introducing evidence at trial in support of the account claimed. (*McCarthy v. Mt. Tecarte Land & Water Co.* (1896) 110 Cal. 687, 693.) The exclusion of evidence is not mandatory, and, in light of the foregoing analysis, the Court would not be inclined to exercise its discretion to order the evidence excluded here.

Based on the foregoing, the Motion is DENIED. This ruling is without prejudice to Defendant's rights under the Discovery Act to request the specific information sought by his purported Demand.

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Elena Flores Beteta v. French Laundry Restaurant Corporation et al

26CV000626

DEFENDANT'S MOTION TO COMPEL ARBITRATION AND STAY THE PROCEEDINGS

TENTATIVE RULING: The motion is GRANTED. Plaintiff's request for an evidentiary hearing is DENIED. Plaintiff is ordered to remit her individual PAGA claim to arbitration forthwith. Plaintiff's representative PAGA claim is STAYED pending completion of the arbitration. Defendants' request for sanctions under sections 128.5 and 128.7 is DENIED. A Review Hearing Re: Status of Arbitration is set for December 15, 2026, at 8:30 a.m. in Dept. A. The Case Management Conference on August 27, 2026 is VACATED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTER

Defendants French Laundry Restaurant Corporation; French Laundry Partners L.P.; and KRM, INC. d/b/a Thomas Keller Restaurant Group (collectively "Defendants") move, pursuant to the Federal Arbitration Act ("FAA") Code of Civil Procedure sections 128.5 and 128.7,⁴ for an order compelling the arbitration of Plaintiff Elena Flores Beteta's ("Plaintiff") individual Private Attorneys General Act ("PAGA") claims against Defendants and staying Plaintiff's representative PAGA claims pending completion of the arbitration. Defendants further move, pursuant to sections 128.5 and 128.7, to recover costs and fees associated with bringing the instant Motion to Compel Arbitration, in the amount of \$5,000.

⁴ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

B. LEGAL STANDARD

A proceeding to compel arbitration is, in essence, a suit in equity to compel specific performance of a contract. (*California Teachers Assn. v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399.) On a motion to compel arbitration, supported by *prima facie* evidence of a written agreement to arbitrate the underlying controversy, the court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether the agreement is enforceable. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413.) The moving party bears the burden of proving the existence of the agreement by a preponderance of the evidence. (*Ibid.*) The opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Ibid.*) California law strongly favors arbitration. (*Prima Donna Development Corp. v. Wells Fargo Bank, N.A.* (2019) 42 Cal.App.5th 22, 35 (*Prima Donna*).)

C. DISCUSSION

1. The Parties Entered into an Arbitration Agreement Which Covers Plaintiff's Individual PAGA Claim

Plaintiff's complaint is titled "Representative Action Complaint" and asserts a single cause of action for "Violation of the Private Attorneys General Act of 2004, Cal. Labor Code §2698 *et seq.*" "on behalf of herself, all aggrieved employees, and the State of California as a Private Attorneys General."

Defendants argue that Plaintiff's individual PAGA claim must be resolved in individual arbitration consistent with *Viking River Cruises, Inc. v. Moriana* (2022) 569 U.S. 639 (*Viking River*) and *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104.

The Court finds that Defendants have presented evidence sufficient to make a *prima facie* showing that Plaintiff's individual PAGA claim is covered by the Mutual Arbitration Agreement ("Arbitration Agreement"), signed by Plaintiff on January 20, 2024. (See Declaration of Mariel Rogers ("Rogers Decl.") ¶ 8, Exh. A; see also Mem., pp. 9-14.)

Based on the foregoing, the Court finds that Defendants met their burden of proving the existence of an agreement between Plaintiff and Defendants to arbitrate and that the scope of the Arbitration Agreement covers Plaintiff's individual PAGA claim in this action.

Plaintiff appears to concede these issues by failing to address or dispute them through the Opposition. Through Defendants' Reply, they address Plaintiff's claimed inability to understand English as disputing that she entered into the Arbitration Agreement. (Reply, pp. 7-9.) However, that is not how the Court understood Plaintiff's Opposition, which nowhere addresses or disputes the *existence* of the Arbitration Agreement and, instead, the facts asserted regarding her English/Spanish capabilities were only analyzed with respect to unconscionability.

2. Plaintiff Fails to Show that the Arbitration Agreement is Unconscionable

“Both procedural and substantive unconscionability must be present before a contract or term will be deemed unconscionable.” (*Serafin v. Balco Properties Ltd., LLC*, 235 Cal.App.4th 165, 178.) “Both, however, need not be present to the same degree. A sliding scale is applied so that the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Ibid.* [internal quotations omitted].) As noted, the opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413.)

a. Plaintiff Fails to Show Procedural Unconscionability

Plaintiff argues that the Arbitration Agreement is procedurally unconscionable because Defendants knew Plaintiff required Spanish translation in order to understand English documents; however, Defendants presented Plaintiff with an English-language legal document, failed to provide a Spanish translation, and failed to explain the rights she was purportedly waiving. (Opposition, pp. 8-10.) In support of this argument, Plaintiff relies entirely on her Declaration. (*Ibid.*)

Through the Reply, Defendants note that Plaintiff’s Declaration is in Spanish and that Plaintiff failed to file a certified translation with her Opposition. Defendants therefore object, in whole, to Plaintiff’s Declaration. The objection is SUSTAINED for the following reason.

“Exhibits written in a foreign language must be accompanied by an English translation, *certified under oath* by a qualified interpreter.” (Cal. Rules of Ct. rule 3.1110(g). *Italics added.*) “Whenever, under any law of this state or under any rule, regulation, order or requirement made pursuant to the law of this state, any matter is required . . . to be supported, evidenced, established, or proved by the sworn . . . *oath* . . . in writing of the person making the same . . . such matter may with like force and effect be supported, evidenced, established or proved by the unsworn statement, declaration, verification, or certificate, in writing of such person which recites that it is certified or declared by him or her to be true under penalty of perjury, is subscribed by him or her, and (1), if executed within this state, states the date and place of execution, or (2), if executed at any place, within or without this state, states the date of execution and that it is so certified or declared under the laws of the State of California.” (Code Civ. Proc., § 2015.5. *Italics added.*)

There is no certification, let alone code-compliant certification, with Plaintiff’s Opposition, nor is there anything tying the Spanish Declaration signed by Plaintiff to the unsigned English Declaration directly following it. As such, there is no competent evidence, in the Court’s file, of the facts stated through Plaintiff’s English Declaration. Because Plaintiff’s defense of procedural unconscionability is entirely based upon the facts within Plaintiff’s Declaration, there is no competent evidence in support of Plaintiff’s defense.

b. Plaintiff Fails to Show Substantive Unconscionability

The foregoing conclusion prevents a finding of unconscionability. However, the Court elects to briefly address the substantive unconscionability piece.

Plaintiff argues that the Arbitration Agreement is substantively unconscionable because it limits discovery and lacks mutuality. (Opposition, pp. 9-11.)

With respect to the discovery, Plaintiff argues that Section 6 provides that “[e]ach party may take the deposition of two (2) individual fact witnesses,” and permits only ten interrogatories, subject to the parties’ consent or Arbitrator’s exclusive authority to grant additional discovery. In support, Plaintiff cites to *Fitz v. NCR Corp.* (2004) 118 Cal.App.4th 702, 717-19, *Mercuro v. Superior Court* (2002) 96 Cal.App.4th 167, 183, and *Nunez v. Cycad Mgmt LLC* (2022) 77 Cal.App.5th 276.

In Opposition, Defendants argue that reasonable limitations on discovery are routinely upheld particularly where the arbitrator retains discretion to expand discovery. (Reply, pp. 11-12, citing *Dotson v. Amgen, Inc.* (2010) 181 Cal.App.4th 975, 983 and *Ramirez v. Charter Commc’ns, Inc.* (2024) 16 Cal.5th 478, 506-07.) Defendants also distinguish the authority upon which Plaintiff relies.

The Court finds that *Dotson* and *Ramirez* compel this Court to find that the abovementioned limitations on discovery are not unconscionable. “[A]rbitration is meant to be a streamlined procedure. Limitations on discovery, including the number of depositions, is one of the ways streamlining is achieved. In *Armendariz*, the court stated that the parties are entitled to discovery sufficient to vindicate their claims. The court also acknowledged that discovery limitations are an integral and permissible part of the arbitration process. ‘Adequate’ discovery does not mean ‘unfettered’ discovery. *Armendariz* specifically recognized that parties may agree to something less than the full panoply of discovery permitted under the California Arbitration Act.” (*Dotson, supra*, 181 Cal.App.4th at 983, internal citations omitted; see also *Ramirez, supra*, 16 Cal.5th at 507 [where an agreement, which limits discovery to four depositions, 20 interrogatories, and 15 requests for documents, can be “construed to allow the arbitrator to order additional discovery as needed to allow a full and fair exploration of the issues in dispute, the discovery provisions would be valid. ... Such an interpretation of the provisions eliminates any unconscionability.”].)

With respect to the lack of mutuality, Plaintiff argues that, although the agreement purports to require arbitration of most employment-related disputes, Section 3 preserves judicial remedies for the types of claims an employer is most likely to bring while requiring employees to arbitrate virtually all statutory employment claims. (Opposition, p. 11.) Section 3, entitled, “Limitations on how this Agreement Applies and Claims not Covered by this Agreement,” provides: “either party may apply to a court of competent jurisdiction for temporary or preliminary injunctive relief in connection with an arbitrable controversy, including, without limitation, any disputes arising out of or related to the Employee Confidentiality, Non-Disclosure and Non-Solicitation Agreement (or similar agreement).” (MAA § 3.) Plaintiff contends that, because those are claims asserted by the employer and not the employee, the Agreement is impermissibly one-sided in favor of the employer.

The Court does not find that Section 3 is impermissibly one-sided. The purportedly employer-sided disputes are included “without limitation,” and the sentence clearly allows *either*

party to apply for injunctive relief in connection with *an arbitrable controversy*, which includes “any and all disputes that may arise between [the parties].” (See MAA §§ 2-3. Emphasis added.) Moreover, even if this section could be construed as one-sided, a provision is not “unfairly one-sided merely because one side is, as a practical matter, more likely to make use of it.” (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1248, fn. 4.0.)

Plaintiff’s request for an evidentiary hearing under Rules of Court, rule 3.1306 and *Rosenthal, supra*, 14 Cal.4th 394 is DENIED, on the grounds that Plaintiff fails to articulate any good cause warranting the extraordinary request for live testimony, as opposed to standard declarations and documentary evidence. (See Rules of Court, rule 3.1306(a).) Plaintiff’s own failure to certify the translation of her declaration does not belatedly serve as good cause.

Based on the foregoing, the motion is GRANTED.

Defendants’ request for sanctions under sections 128.5 and 128.7 is DENIED on the grounds that Defendants’ only discussion of the authority or basis therefor is in a footnote in their Memorandum.

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In The Matter of Alyssa McIntosh

26CV000811

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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In The Matter of Nicolas F De Pierola Alvarado

26CV000983

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Order to Show Cause for Change of Name (OSC) was entered in this matter on May 08, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court’s file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to July 21, 2026, at 8:30 a.m. in Dept. B to provide any publisher time to file the POP.